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CLERK, STATE COURT
RIVERTON COUNTY

IN THE STATE COURT OF RIVERTON COUNTY

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
No. 26-CV-04417

DEFENDANT ROBERT SMITH'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT

COMES NOW Defendant Robert Smith ("Defendant"), by and through his undersigned counsel, and files this Answer and Affirmative Defenses to the Complaint filed by Plaintiff John Doe ("Plaintiff") on September 24, 2026, showing the Court as follows:

Response to the Allegations of the Complaint

Defendant responds to the allegations of the Complaint, section by section. Any allegation not expressly admitted below, including any allegation contained in a heading, an unnumbered paragraph or the prayer for relief, is denied.

1. Parties, jurisdiction and venue. Defendant admits that he is an adult individual and that he was personally served with the Summons and Complaint on October 14, 2026. Defendant denies that he resides at 118 Larkspur Ln, Riverton, and states that he now resides at 4410 Quarry Ridge Ct, Millbrook. Defendant admits that this Court has subject-matter jurisdiction and that venue is proper in this Court. Defendant is without knowledge or information sufficient to form a belief as to the truth of the allegations concerning Plaintiff's residence, and therefore denies the same.

2. Facts. Defendant admits that on February 6, 2026, at approximately 7:10 a.m., he was operating a 2017 Chevrolet Silverado northbound on Birch Avenue at its intersection with Maple Hollow Road in Riverton, and that a collision occurred between his vehicle and a 2020 Ford Escape operated by Kevin Alvarez. Defendant is without knowledge or information sufficient to form a belief as to the position, conduct or condition of any occupant of the Ford Escape, and therefore denies the same. Defendant states that the issuance of a uniform traffic citation is not an adjudication of fault, and denies that he failed to exercise ordinary care. Defendant denies all remaining allegations of this section.

3. Count I — Negligence. Defendant denies each and every allegation of this Count, including each allegation that Defendant was negligent, that any act or omission of Defendant was a proximate cause of any injury or loss to Plaintiff, and that Plaintiff is entitled to recover from Defendant in any amount.

4. Count II — Negligence Per Se. Defendant admits that the statute requiring a driver to stop at a stop sign is a safety statute, states that the remaining allegations of this Count are conclusions of law to which no response is required, and to the extent a response is required, denies them, and specifically denies that any violation proximately caused any injury or loss to Plaintiff.

5. Damages. Defendant denies that Plaintiff sustained the injuries and damages alleged, denies that any injury or damage was caused by the collision, and denies that Plaintiff is entitled to recover medical expenses, lost wages, future medical expenses, damages for pain and suffering or any other damages from Defendant.

6. Prayer for relief. Defendant denies that Plaintiff is entitled to any of the relief requested in the Complaint's prayer for relief, or to any relief whatsoever against Defendant.

Affirmative and Other Defenses

Without assuming any burden of proof that would otherwise rest with Plaintiff, Defendant asserts the following defenses:

First Defense — Failure to State a Claim. The Complaint fails, in whole or in part, to state a claim upon which relief can be granted.

Second Defense — Comparative Negligence. Plaintiff's claims are barred or must be reduced in proportion to the fault of persons other than Defendant. The 2020 Ford Escape in which Plaintiff was riding entered the all-way stop intersection out of turn and failed to yield to Defendant's vehicle, which had already entered the intersection. Upon information and belief, Plaintiff was not wearing an available seatbelt at the time of the collision, and his failure to use it caused or contributed to the injuries he claims. Defendant requests that the trier of fact apportion fault among all persons whose conduct contributed to the collision, including the driver of the Ford Escape, Kevin Alvarez, whether or not a party to this action.

Third Defense — Causation. The injuries and damages Plaintiff claims were not caused by the collision. Plaintiff did not seek medical treatment of any kind until fourteen (14) days after the collision, and the conditions for which he later sought treatment, including any findings on diagnostic imaging of the cervical spine, are degenerative in nature or pre-existed the collision, or resulted from intervening or subsequent events for which Defendant is not responsible.

Fourth Defense — Failure to Mitigate. Plaintiff failed to mitigate his damages, including by failing to seek timely medical care and by failing to attend scheduled treatment appointments and to follow the course of treatment prescribed by his providers. Any recovery must be reduced accordingly.

Fifth Defense — Reasonableness of Charges. Defendant denies that the medical charges claimed are reasonable in amount or were necessarily incurred as a result of the collision, and demands strict proof thereof.

Sixth Defense — Setoff and Credit. Defendant is entitled to a setoff or credit for any amounts paid to or on behalf of Plaintiff for the damages claimed, to the extent permitted by applicable law.

Seventh Defense — Reservation. Defendant reserves the right to amend this Answer to assert additional defenses, cross-claims or third-party claims as may be disclosed through discovery.

WHEREFORE, Defendant prays that Plaintiff's Complaint be dismissed and that judgment be entered in Defendant's favor; that all costs be cast upon Plaintiff; that **Defendant be granted a trial by jury of twelve** on all issues so triable; and that the Court grant such other and further relief as it deems just and proper.

Respectfully submitted this 12th day of November, 2026.

Grant Mercer

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Attorneys for Defendant Robert Smith

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true and correct copy of the foregoing **Defendant Robert Smith's Answer and Affirmative Defenses to Plaintiff's Complaint** upon counsel of record by filing it with the Court's electronic filing system, which will automatically send notice of the filing, and by electronic mail, addressed as follows:

Elijah Thorne
LSH Law Group
500 Commerce St, Suite 1200
Riverton
Attorneys for Plaintiff

This 12th day of November, 2026.

Grant Mercer

Grant Mercer
MERCER & HALE LLP
Attorneys for Defendant Robert Smith